

ENTITLED: “AN ORDINANCE AMENDING ORDINANCE NO. 4045, ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PARCEL OF LAND SITUATED IN A PORTION OF THE NE1/4 SE1/4 OF SECTION 20, T.14N., R.66W., 6TH P.M., LARAMIE COUNTY, WYOMING, TO BE KNOWN AS SCENIC DEVELOPMENT (LOCATED WEST OF AND ADJACENT TO CONVERSE AVENUE, NORTH OF DELL RANGE BOULEVARD).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne hereby finds it necessary to amend Ordinance No. 4045, approved on November 24, 2014, to correct a survey error contained in the annexation map (Exhibit A) attached to the original ordinance.

Section 2. That the Governing Body of the City of Cheyenne hereby finds as follows:

- (a) That Scenic Development Group, LLC, owner of land being situated in a portion of the Northeast Quarter of the Southeast Quarter of Section 20, T.14N., R.66W., 6th P.M., Laramie County, Wyoming, has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, as corrected, said map prepared by Adam E. Deschler, a Professional Land Surveyor, registered in the State of Wyoming, PLS Number 12045; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A-1, Agricultural and Rural Residential, by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 3. That all of the real property described in Exhibit A, as corrected, is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 4. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A, as corrected) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 5. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 6. That this amended ordinance shall be in full force and effect upon its

approval and publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

RICHARD L. KAYSEN, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published:_____



DEVELOPMENT OFFICE

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A COMMUNITY OF CHOICE

MEMORANDUM

TO: City Council Members and Mayor Kaysen

FROM: Josh Tetzlaff, Planner

SUBJECT: Amendment by substitution of an ordinance and map for **Scenic Development** Annexation (UDC-14-00372), an amendment by substitution of a resolution and map for the Final Plat (UDC-14-00372-02), and an amendment by substitution of an ordinance for the Zone Change (UDC-14-00372-01).

DATE: April 8, 2015

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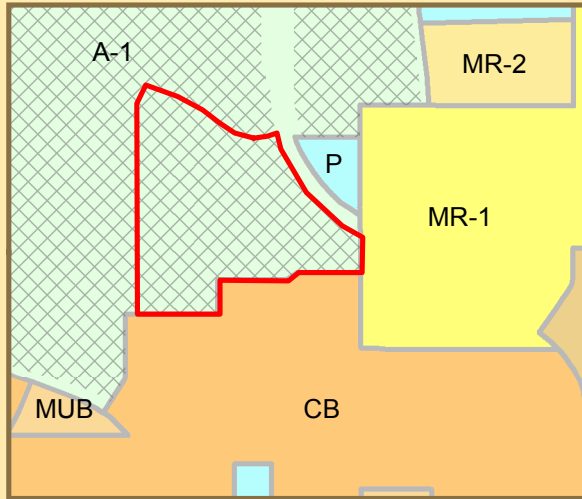
The attached ordinances, resolution, and accompanying maps are related to the annexation, final plat, and zone change applications that were approved by the Governing Body in 2014. These documents are to be substituted for the documents that were passed. The reason for the substitution is an error was made by the applicant during the preparation of the original maps relating to the boundary on the northwest corner of the project. A small portion of the property that was annexed, platted, and rezoned district are currently owned by an adjacent landowner. This amendment will adjust the submitted maps to include only the property that is owned by the original applicant.

Thank you.

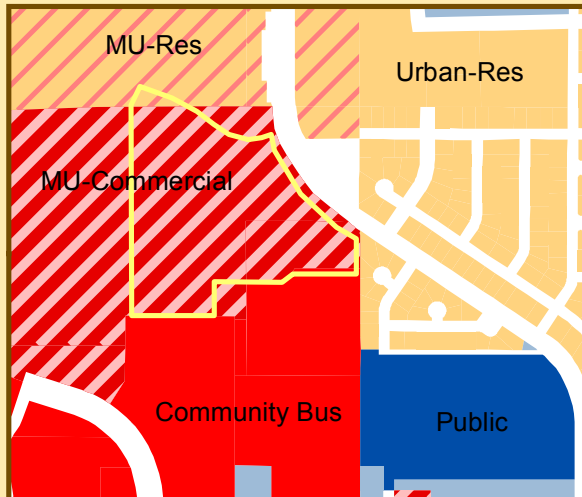
Encl: Amended Annexation Ordinance & Map
Amended Final Plat Resolution & Map
Amended Zoning Map Amendment Ordinance

Cc: File
Owner/Agent
City Attorney
City Clerk

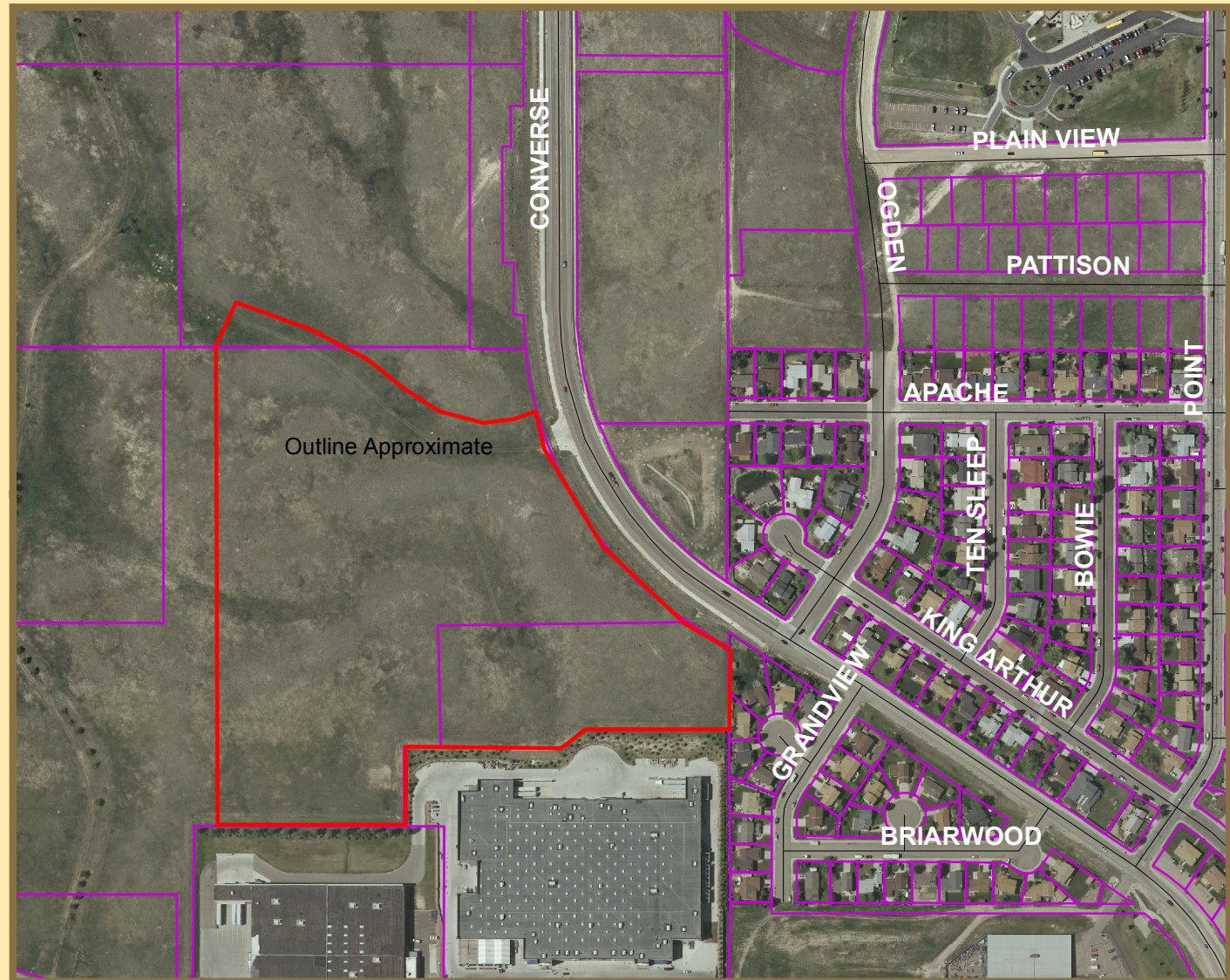
Zone Districts



Future Land Use Map



Scenic Development Annexation, Zone Change, and Final Plat (Frontier Ridge Apartments)



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data

2010 Aerial

1 in = 400 ft



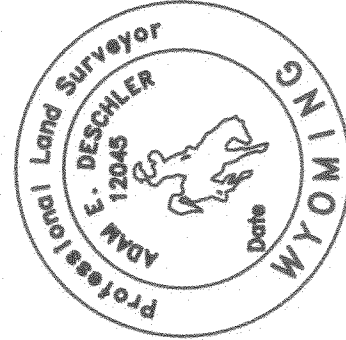
PORTION OF SE1/4 SECTION 20



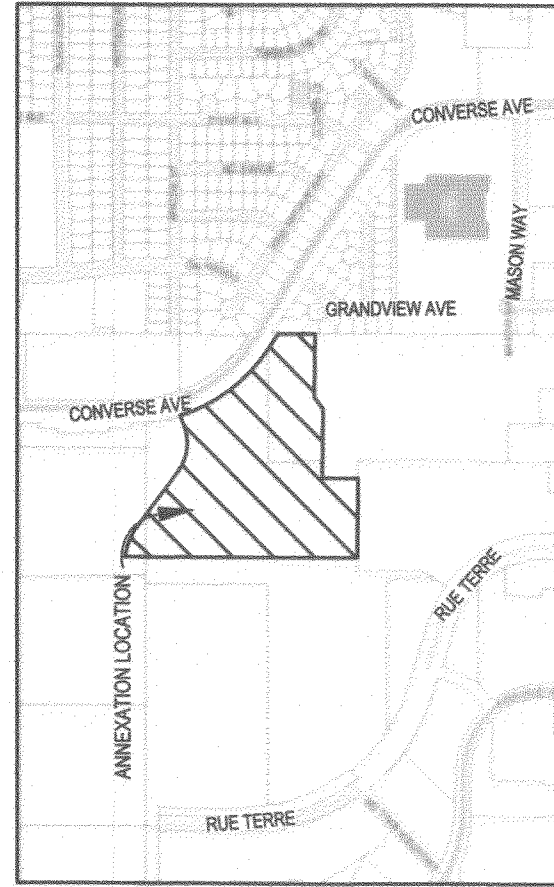


CERTIFICATE OF SURVEYOR

I, ADAM DESCHLER, A REGISTERED PROFESSIONAL LAND SURVEYOR IN THE STATE OF WYOMING, HEREBY STATE THAT THIS SURVEY WAS PREPARED FROM OFFICIAL PLATS AND DEEDS OF RECORD AND FROM NOTES OF A FIELD SURVEY CONDUCTED ON BEHALF OF AWP P.C. AND UNDER MY DIRECT SUPERVISION DURING THE PERIOD OF 2014, AND THAT THE MONUMENTS ARE SET OR FOUND AS SHOWN AND THAT THIS ANNEXATION MAP CORRECTLY REPRESENTS SAID SURVEY OF THE LAND DEPICTED HEREON TO THE BEST OF MY KNOWLEDGE.



VICINITY MAP
N.T.S.



ANNEXATION MAP FOR

SITUATED IN A PORTION OF THE
NORTHEAST QUARTER (NE¼) OF THE SOUTHEAST
QUARTER (SE¼) OF SECTION 20, TOWNSHIP 14
NORTH, RANGE 66 WEST, OF THE 6TH P.M.
LARAMIE COUNTY, WYOMING.
PREPARED DECEMBER 2014